Can African policies support community-led governance over cultural property in the age of artificial intelligence?

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Abstract

Cultural practitioners and local communities in Africa may not benefit equitably from access to new digital technologies such as artificial intelligence (AI) if they are unable to protect the rights and interests associated with their cultural heritage. Concerns have been raised about the difficulty of ensuring or retaining Indigenous[1] data sovereignty in Africa due to low levels of African control over digital ecosystems and infrastructure, which primarily service the needs of companies based in the Global North (Oguamanam 2020; Dugeri 2024). African scholars have identified challenges in supporting creators' rights while promoting cultural innovation and technology-driven development (e.g. Shelver et al. 2024) and developing regionally-coherent and consistent data governance policies that also respond to specific African circumstances and needs (e.g. Effoduh et al. 2024). However, not much research currently focuses specifically on AI and cultural heritage data governance in Africa, as Dugeri's paper (2024) on traditional music confirms.

This paper analyses current policy frameworks and other initiatives that could help support community-led governance over cultural data in Africa. It draws from a broader African policy analysis conducted for a British Academy-funded research project working with cultural practitioners in Burkina Faso to produce critical AI digital literacy toolkits and policy insights on community-led governance over digital cultural data. The project aims to explore whether and how developing critical digital/AI literacies can assist cultural practitioners making decisions about sharing (or not sharing) their cultural data online, even before digital access is widespread, and how policies can support them in doing so.

Questions of data governance have become particularly important for creative workers in the digital environment with the emergence of generative AI. Digital technologies such these provide various opportunities for public and private sector benefit, but also present risks. In the culture sector these technologies offer new tools for creativity in Africa (e.g. Dounia 2021), and have enabled innovative commentaries on repatriated objects (e.g. Atairu 2005). However, generative AI technologies have also unfortunately now made it easier and cheaper to share and distribute, as well as misappropriate or misrepresent cultural information globally. This has negatively affected the economic and cultural interests of contemporary artists internationally and particularly Indigenous Peoples and local communities (e.g. Fitch et al. 2023), but there are also opportunities to control engagement with AI tools. Lewis et al. (2024:n.p.) thus suggest the importance of 'reciprocal co-creation relationships between communities of learners and researchers', enabling Indigenous communities 'to engage with the complexity of AI technologies at different levels' so that communities are making decisions to guide AI development themselves. This could include decisions about what data to share online, in a time where data scraping for training AI models is pervasive and largely unregulated.

Low internet penetration in Africa poses specific risks and opportunities for local communities of cultural heritage practitioners. Small digital footprints may represent a competitive advantage for such communities, protecting against misappro-

priation by third parties. However, lack of visibility also comes with a cost, in both cultural and economic terms. Better online visibility could help promote broader awareness of community cultural practices and markets for cultural products and festivals and reduce digital underrepresentation, but only if communities retain some control over their content. AI tools trained on locally-populated datasets following an ethical and responsible AI framework, and local codes of ethics or licensing models could also potentially assist in community-based heritage-sensitive product innovation, although the skewed nature of available datasets limits the utility of many AI models.

In the heritage field, there has been longstanding academic and grassroots interest in understanding how community-led governance of cultural property could enhance community control over cultural objects, for example in the repatriation of colonial museum collections to custodian communities (e.g. Niala 2024), managing access to secret or sacred information, addressing misappropriation or misrepresentation and ensuring equitable benefit from sales of products or services based on cultural heritage practices (e.g. Janke 2019). Community-led data governance (for example in accordance with the CARE principles, Carroll et al. 2020) may help to protect community and practitioner interests in using their cultural heritage for local benefit.

While community data governance strategies can be developed at the local level, tailored according to local needs and preferences, such strategies are affected by national and international policies that position both digital /AI technologies and culture as drivers of development. The African Union (AU) Continental AI Strategy (2024) identifies 'AI as a key area of focus in the AU development agenda and strategic partnerships at the multilateral level', and emphasises its role in addressing development challenges and questions of diversity, equality and inclusion. The AU's Agenda 2063 conceptualises the contribution of the culture sector to a 'strong cultural identity, common heritage, values and ethics' (2015:2). This follows a long history of linking culture and development since the AU's Dakar Plan of Action of 1992 was entitled 'The Cultural Industries for Development in Africa'.

There is a tension between the visions of how development happens in these two sectors – AI and culture - and who benefits from it. Developing 'responsible AI', digitising government services and using local datasets to train AI models will not automatically drive sustainable development for local communities (Hassan 2022, 2024). This is particularly true if local communities lose control over the data they share, if 'responsible AI' frameworks do not consider community agency and ownership of cultural data, or if AI policies are mainly focused on attracting foreign investment (Hassan 2024). It can thus be helpful to focus not only on the *responsibility* of designing ethical AI tools, but also on developing *response-ability* (Klumbyte 2023): the ability of local communities to respond to new AI developments in ways that benefit them.

Digital policy in African countries, particularly in regard to AI, tends to focus on the protection of individual personal data, national security or the administration of government, and on sectors such as agriculture and health rather than culture. For example, between 2017 and 2023, the African Policy Observatory (2025) recorded over 70 AI-related policies on privacy and security, over 40 on general coordination and strategy, and 20 or more on access to information and accountability, international cooperation and public sector use of AI, but none on AI use in relation to language and culture. This approach primarily positions AI regulation in relation to protection of national and personal individual interests, and not community cultural interests.

While cultural policies in many African countries position cultural heritage as both national property and community resource, they generally confer few rights associated with cultural heritage on community custodians and have few internationally-enforceable protections against third party cultural misuse and misappropriation. These constraints are not easy to address, partly because international agreements on intellectual property generally do not recognise community rights in cultural intellectual property, in some contrast to the emphasis on community ownership or stewardship of cultural resources in international agreements such as the 2003 UNESCO Convention on the Safeguarding of the Intangible Cultural Heritage and the UN Declaration on the Rights of Indigenous Peoples (UNDRIP). Thus, community norms about what information to share and what not to share online, for example, may play a more important role in protection of cultural heritage than national legislation.

Dugeri (2024:51) suggests the need for 'broad policy and legal reforms at national and continental levels to safeguard the interests of Indigenous African content creators'. These include establishing harmonized data protection laws that include provision for data trusts and stewardships, sui generis copyright laws that protect traditional cultural expressions, specialized licensing frameworks, ethical guidelines and content labelling frameworks (Dugeri 2024: 52-54). Building on this and other work, the paper will review current policy on AI and culture in Africa, and discuss dif-

ferent ways in which African policy frameworks and local initiatives in the fields of AI, cultural industries and cultural heritage could support communities in managing, protecting and promoting their digital cultural information, to ensure they benefit equitably from it. It will provide some examples of community-based heritage management strategies (Deacon et al. 2025), including the use of labelling schemes (Somda 2019), that could be relevant to data governance over cultural heritage in the African context.

Notes

1. The term Indigenous has been used broadly speaking to reference the comparative work on Indigenous Peoples and local communities in this article because of its broader policy focus, but some African communities (including those we are working with) do not self-Identify as Indigenous.

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